



Empire State Development

MUSICAL AND THEATRICAL TAX CREDIT — ANNUAL REPORT CALENDAR YEAR 2024

Empire State Development (ESD) oversees administration of the Empire State Musical and Theatrical Tax Credit Program.

The Program is designed to encourage musical and theatrical production companies to conduct pre-tour activities, technical rehearsals, and to perform shows at locations in Upstate New York. New York is home to some of the premier regional venues for musical and theatrical production.

The Program provides incentives for qualified production companies to conduct technical rehearsals and other pre-tour activities and perform shows in qualified regional theaters throughout Upstate NY. The Program requires the use of these Upstate entertainment venues, making them competitive with other venues located in the Northeast States that offer similar tax incentives to musical and theatrical productions, which begin national and regional tours in their theaters.

Program credits of \$8 million per year can be allocated and used to encourage companies to perform and conduct technical rehearsals and other pre-tour activities in Upstate New York, helping to stimulate local economies. Production companies may be eligible to receive a fully refundable credit of 25 percent of qualified production and transportation expenditures.

This report reflects activity during calendar year 2024. The information presented includes the number of productions that applied, projected spending, and estimated credits for qualified production projects deemed eligible to participate in the Program.

Empire State Development

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INITIAL APPLICATIONS

ESD accepts initial applications on a rolling basis and reviews them when deemed complete. A preliminary eligibility determination is made for all applications that meet the criteria set forth in statute and regulations and applicants are required to submit a final application once projects complete program requirements.

During calendar year 2024, initial applications for seven musical and theatrical productions were submitted. These projects estimate:

- ☐ \$23 million in production expenditures related to the qualified production facilities, including labor
- ☐ \$3 million in additional expenditures in NYS, including transportation, travel, and hotels
- ☐ 565 hires by the qualified touring productions
- ☐ 448 hires by the qualified production facilities
- ☐ \$6.5 million in tax credits

FINAL APPLICATIONS

When a project is completed, a final application must be submitted for review and audit by ESD before a credit is issued. Per Program requirements, the name of the company receiving the tax credit, the amount of tax credit issued, and the credit eligible hours and wages for each project issued a credit is stated below. In 2024, three tax credits were issued.

Project	Company	Credit Eligible Hours	Credit Eligible Wages	Tax credit amount	Total qualified costs
Frozen - 2019 Tour	Buena Vista Theatrical Group Ltd.	6,880	\$4,762,400	\$1,401,042	\$5,604,166
Oklahoma	Cain't Say No LLC	12,672	\$327,800	\$386,253	\$1,545,013
Pretty Woman	Pretty Woman Productions Inc	15,665	\$465,304	\$355,242	\$1,420,968
	Totals	35,217	\$5,555,504	\$2,142,537	\$8,570,147